AURA SOLUTIONS

TERMS AND CONDITIONS

Aura Solutions Group Limited

VERSION 1.2 · REVIEWED JANUARY 2026

Key terms at a glance

- **Payment is strictly 30 days end of month (EOM).** Invoices are due 30 days after the end of the month in which they are dated.
- Late payments carry statutory interest and compensation, and we may pause work on the account until it is paid.
- You must describe your waste accurately and tell us about any hazardous waste before we attend.
- Cancellations with less than 24 hours' notice are charged at 50% of the booked price. Visits where we cannot get access or start work are charged in full.
- We are not responsible for damage caused by the age, wear or existing condition of your drains, tanks, pumps or other equipment while we carry out work with reasonable care.
- For assets we manage, you remain the owner and responsible for permits and insurance. We are not responsible for flooding, overflows or pollution unless caused by our negligence.
- Maintenance agreements run for their full fixed term; ending one early costs 75% of the remaining balance.
- Prices exclude VAT. Disposal is charged on the actual weight or volume recorded by the receiving site.

1. About these terms

1. These terms apply to every quotation, order and job between Aura Solutions Group Limited (company number 15761350, "we", "us") and the customer named on the account or order ("you"). They apply instead of any terms you send us, unless we agree otherwise in writing.
2. They cover all of our services: **asset management** (servicing, monitoring and maintenance of septic tanks, treatment plants, pump stations and drainage), **civils and installations** (groundworks, drainage, pump stations, septic tanks, treatment plants, gullies, interceptors and remedial works), **industrial services** (tank cleansing, high-pressure jetting and washing, culvert cleaning and site support) and **waste management** (liquid, food, interceptor, process and hazardous liquid waste, one-off and scheduled collections). Where a quotation or contract includes its own specific terms, those apply as well.
3. A contract is formed when you accept a quotation, give us an order or purchase order, or allow us to start work, whichever happens first.
4. We may update these terms. The version in force on the date of your order applies to that order.

2. Quotations and prices

1. Quotations are valid for 30 days unless they say otherwise, and are based on the information you give us.
2. All prices exclude VAT, which is added at the current rate.
3. Disposal is charged on the actual weight or volume recorded by the receiving site, or on our reasonable estimate where no weighbridge is available. Minimum charges, gate fees and disposal surcharges may apply.
4. We may adjust prices to reflect changes outside our control, such as landfill tax, gate fees, fuel or regulatory charges. For agreed contract rates we will give you notice before any change takes effect.
5. Hourly-rate work is charged from arrival on site until we leave, plus travel time where quoted. Waiting time caused by delays on site is charged at our hourly rates.
6. Out-of-hours, weekend, bank holiday and emergency call-outs are charged at our higher rates.

3. Payment

1. **Our payment terms are strictly 30 days end of month (EOM).** Each invoice must be paid in full within 30 days of the end of the month in which it is dated. For example, an invoice dated 10 March is due by 30 April.
2. Payment is made by bank transfer to the account shown on our invoice. Please send remittance advice to info@aurasolutions.co.uk.
3. If you need a purchase order (PO) number on invoices, you must give it to us before work starts. A missing PO number is not a reason to delay payment for work you have ordered.
4. You must tell us about any query on an invoice in writing within 7 days of the invoice date, and pay any part that is not in dispute by the due date.
5. If payment is late, we may charge interest and fixed-sum compensation under the Late Payment of Commercial Debts (Interest) Act 1998, together with our reasonable costs of recovering the debt.
6. If any amount is overdue, we may suspend or refuse further work on your account until it is paid, and we may set a credit limit or ask for payment in advance.
7. You may not withhold or set off any amount against our invoices unless we agree in writing.

4. Your waste and your duty of care

1. You must give us an accurate description of the waste, including its source, type and List of Waste (EWC) code where known, as required by the waste duty of care under section 34 of the Environmental Protection Act 1990.
2. You must tell us before we attend if any waste is, or may be, hazardous. Hazardous waste needs a consignment note and may need different equipment, disposal routes and charges.
3. You must not give us waste that differs from the description agreed, or any prohibited or undeclared waste (for example asbestos, clinical, radioactive or explosive material). If you do, you will pay all extra costs of handling, testing, transport and disposal, and you will be responsible for any resulting losses, fines or claims.
4. We may refuse to collect waste that is not as described, is unsafe, or that we are not permitted to carry. Hazardous liquid waste is assessed stream by stream, and we are not obliged to accept every hazardous waste.
5. Waste transfer notes, and consignment notes for hazardous waste, will be completed for each transfer. Both parties must keep them for at least two years (three years for consignment notes).
6. Responsibility for waste that matches its description passes to us when it is loaded onto our vehicle or into our equipment. Waste that remains in a tank, chamber, drain or other asset, before collection or after we leave, remains your responsibility.

5. Site access and safety

1. You must give us safe and clear access to the site and the work area at the agreed time, along with any keys, codes, permits, drawings, utility plans and site rules we need.
2. You must tell us about any known hazards, including confined spaces, gases, contamination, unstable ground, live services and restricted access.
3. Our staff may stop work, without charge to us, if they believe it is unsafe to continue. Any extra time or return visits needed as a result are chargeable unless the hazard was caused by us.
4. Where a person is not available to sign a waste transfer note on site, you authorise our operative to record that the customer was unavailable, and the note is issued on that basis.

6. Cancellations, aborted visits and changes

1. You may cancel or rearrange a booked visit free of charge with at least 24 hours' notice.
2. **Cancellations with less than 24 hours' notice are charged at 50% of the quoted or booked price**, plus any third-party costs we have already committed, such as plant hire, traffic management, subcontractors or disposal bookings.
3. If we attend and cannot start or finish the work because of lack of access, unsafe conditions, incorrect information or the site not being ready, we may charge an aborted visit or call-out fee, plus time spent on site.
4. Any extra work you ask for, or that is needed because conditions differ from what we were told, is charged at our current rates or as agreed with you on site.

7. Age and existing condition of your systems

1. Many drains, sewers, tanks, chambers, pumps, pipework, valves, covers and fittings are old, worn, corroded or already defective. We carry out all work with reasonable care and skill, but **we are not responsible for damage that results from the age, wear, deterioration, corrosion, poor original installation or existing condition of your systems**, where that damage happens while we are carrying out the agreed work with reasonable care.
2. Examples include: a defective or brittle pipe failing during jetting or rodding; a seized or corroded valve, cover, frame or bolt breaking when it is operated or lifted; an old pump or control failing when it is tested, lifted or restarted; and leaks, collapse or movement revealed once a tank, chamber or wet well is emptied or cleaned.
3. Emptying a septic tank, cesspool, treatment plant or wet well can, in high groundwater, cause it to lift, crack or move. We will follow good practice and tell you if we see a risk, but this risk remains with you unless we have agreed otherwise in writing.
4. Where we find defects, we will tell you and may recommend repairs. We may decline to continue if continuing would be unsafe or likely to cause damage. Repair or replacement of existing defective items is chargeable.
5. Clearing a blockage does not guarantee that it will not happen again, particularly where there are structural defects, root ingress or misuse.
6. CCTV surveys and reports record the condition visible at the time of survey. We are not responsible for defects that could not reasonably be seen.
7. We are not responsible for damage to underground services or structures that were not shown to us or were not reasonably detectable.

8. Civils, installation and monitoring work

1. Our prices for groundworks and installations are based on normal ground conditions and the information available. Unexpected ground conditions, rock, groundwater, contamination, buried obstructions or unrecorded services may lead to extra cost and time, which we will discuss with you before continuing where possible.
2. Unless we agree otherwise in writing, you are responsible for any planning permission, building regulations approval, landowner or neighbour consents, and Environment Agency or Natural Resources Wales permits or registrations (including for septic tank and treatment plant discharges).
3. Equipment and materials we supply remain our property until all invoices for that job are paid in full. Manufacturers' warranties are passed on to you. Our own workmanship is guaranteed for 6 months from completion, provided the system is used and maintained correctly.
4. Telemetry and monitoring help to warn of problems, but they depend on power, signal and equipment working. They do not guarantee that a fault, overflow or failure will be detected or prevented, and you remain responsible for responding to alerts sent to you.
5. Maintenance and asset management agreements run for the full fixed term agreed and cannot be ended early by giving notice. If you ask to end an agreement before the end of its term, an early termination charge of **75% of the remaining balance** (the charges still due for the rest of the term) becomes payable immediately.

9. Asset management and environmental risk

1. Where we manage, monitor or maintain an asset for you (for example a septic tank, treatment plant, pump station, wet well, interceptor or drainage network), you remain the owner and operator of that asset. You remain responsible for its compliance, including any discharge permit, exemption or General Binding Rules, and for its repair, replacement and insurance, unless our contract says otherwise.
2. **We are not responsible for flooding, overflows, spills, pollution, odour or other environmental damage**, or for any resulting clean-up costs, fines, enforcement action or third-party claims, unless it is caused by our negligence or our failure to carry out the agreed work.
3. In particular, we are not responsible where the cause is: the age, design, capacity or condition of the asset; storms, heavy rainfall, high groundwater or surface water entering the system; power, telemetry or communications failure; equipment failure that was not caused by us; misuse, including fats, oils, grease, wipes, chemicals or other unsuitable material entering the system; work by others; or a delay in access, approval or payment that prevents us acting.
4. Service visits, emptying frequencies and response times are planned in good faith and based on normal conditions and the information you give us. They are targets, not guarantees, unless a fixed response time is agreed in writing. Emergency attendance depends on safe access, available vehicles and disposal capacity.
5. You must tell us promptly about alarms, high levels, blockages, odours, leaks, overflows or changes in use, and take reasonable steps to limit any damage or pollution, including notifying the Environment Agency or Natural Resources Wales where the law requires it.
6. We recommend you keep suitable insurance for the asset, including flood, pollution and third-party cover.

10. Liability

1. Nothing in these terms limits liability for death or personal injury caused by negligence, for fraud, or for anything else that cannot be limited by law.
2. We are not liable for loss of profit, loss of business, loss of use, or any indirect or consequential loss.
3. Our total liability under any job is limited to the price paid or payable for that job, or, for damage to property, the amount recoverable under our insurance, whichever is greater.
4. You must tell us in writing about any claim within 14 days of becoming aware of it, and give us a reasonable opportunity to inspect and put right any problem before others are instructed.

11. General

1. We may use carefully selected subcontractors and other licensed carriers or disposal sites to carry out the work. We remain responsible for work we subcontract.
2. We are not liable for delays or failures caused by events outside our reasonable control, such as severe weather, closure of disposal sites, vehicle breakdown, strikes or supplier failure.
3. We use your information to manage your account, carry out work, meet our legal record-keeping duties (including waste records) and recover payment, in line with UK data protection law.
4. These terms are governed by the law of England and Wales, and the courts of England and Wales have exclusive jurisdiction.